

LEASE AGREEMENT

MADE this 1st day of June, 2023 by and between SPARTAN MEDICAL FACILITY, L.P., a Pennsylvania limited partnership having a place of business at 100 Stoops Drive, Monongahela, Pennsylvania, 15063, hereinafter "Lessor",

- AND -

John O. Fishell Jr, DMD, MDS, Inc. (Hereinafter called "Lessee")

WITNESSETH, THAT:

The parties hereto hereby agree as follows:

1) STATEMENT OF DEMISE, DESCRIPTION OF PREMISES. In consideration of the rents, covenants and agreements hereinafter contained, Lessor does hereby demise and lease unto Lessee all that certain premises containing approximately 556 square feet, known as Suite No. 250 of the building located at 100 Stoops Drive, Monongahela, Pennsylvania, 15063, the "Leased Premises." Lessee acknowledges that Lessee has reviewed the premises and will accept the Leased Premises in an "as is" condition.

2) TERM OF LEASE. The term of this Lease shall be **5 Years** beginning on the 1st day of **March, 2023** and shall terminate on the 29th day of **February 29, 2028**, unless sooner terminated as provided in this Lease.

3) RENTAL.

(a) The basic rent due during the primary term and any renewal term of this Lease hereunder shall be **\$55,600.21** payable without previous demand in equal monthly installments of **\$926.67**, each, being due and payable in advance on the 1st day of each calendar month of the term of this Lease. Rent shall be paid at Lessor's office hereinabove set forth or at such other place as Lessor shall direct. A ten (10%) percent late charge is hereby imposed upon any installment of rent not received by Lessor within fifteen (15) calendar days of the due date of same.

(b) Lessee shall also pay as additional rent when due, all expenses of occupying and operating the demised premises, not otherwise expressly stated herein to be expenses of Lessor, including the following:

(i) Lessee's pro rata share of "increased fire insurance premiums" and "increased property taxes".

If Lessee fails to pay said additional rent in full when due, Lessor may do so for Lessee's account, charge Lessee's account therefore, and recover said amount by adding the amount thereof to the fixed rent due hereunder, and thereafter treat the same in all respects as a part of such fixed rent.

(ii) The term "increased property taxes, 2003", as used herein shall mean all real estate tax increases made after 2003, caused by an increase in the municipal assessment of the medical facility's property valuation above the amount computed for 2003, or above millage rate in effect for 2003, which during the term of this Lease, are assessed against, become a lien upon or become payable in respect of the building, improvements thereto, and the land on which the same is erected, or any tax measured by the income derived from said property.

The amount of Lessee's pro rata share of increased property taxes shall be a sum which bears the same ratio to the total amount of such increased property taxes that the total number of square feet of rentable area in the demised premises bears to the total number of square feet of rentable areas in the building.

(iii) The term "increased fire insurance premiums", as used herein, shall mean all fire and extended coverage insurance premium increases during the term hereof with respect to casualty insurance covering the building carried by Lessor, to the extent that such increases are caused by the nature of Lessee's use of occupancy of the premises. The amount of Lessee's pro rata share of the increased fire insurance premiums shall be a sum which bears the same ratio to the total amount of such increased operation and maintenance costs that the total number of square feet of rentable area in the demised premises bears to the total number of square feet of rentable area in the building.

(c) Lessor will:

Cap-off, within the wall space, the prior tenants plumbing, except where they choose location of their sink.

All wall repairs, patching, etc.

Finish-coat painting of all walls and trim.

Any other needed cosmetic repairs to interior of space.

New carpet of entire space, with rubber base trim.

Installation of sink cabinet, countertop, sink/faucet and wall cabinet above. (Lessee will provide materials for this if not included in the allowance.

(d) Lessee will:

Hire contractors for Phone and data network wiring and termination, Interior security camera system, Comcast and the moving/delivery of office furniture and equipment.

4) **USE OF PREMISES.** The Leased Premises shall be used and occupied as a medical office and for no other purpose. Lessee shall not use the Leased Premises as a nuisance or for any disorderly, illegal or immoral purposes, or use the premises in a fashion which violates any law, ordinance or regulation. Lessee shall not use the premises in any fashion which would

cause Lessor's or Lessee's fire, casualty or liability insurance on the Leased Premises to be increased or voided.

5) REPAIRS AND MAINTENANCE. Lessor shall provide reasonable repairs and maintenance to the foundation, exterior walls, exterior windows, plumbing, roof, heating, air conditioning, electrical systems and all common areas of the building, including but not limited to hallways, sidewalks, parking areas (including snow and ice removal) and landscaping. Lessor shall provide routine cleaning and housekeeping of the Leased Premises. Lessee shall be solely and exclusively responsible for all other maintenance and repairs, including but not limited to the following: (1) the interior areas of the Leased Premises including facilities and appliances therein; (2) any other part of Lessor's building where such repairs are occasioned by negligence, abuse, or neglect by Lessee or any invitee of Lessee.

6) UTILITIES AND SERVICES. Lessor shall provide and pay for all utilities serving the Leased Premises.

7) REAL ESTATE TAXES. Notwithstanding the provisions of Paragraph 3(b) hereof, all real estate taxes, municipal charges and assessments imposed on the property during the lease term shall be paid by the Lessor.

8) INTERRUPTION OF UTILITIES AND SERVICES. Lessor shall not be liable for any damages including actual, incidental and/or consequential damages for interruption or temporary cessation of any of the utilities and services hereinabove set forth in Paragraph 7 and/or which become necessary to effectuate repairs or maintenance to same.

9) ALTERATIONS. Lessee may not make any alterations, additions, or modifications to the Leased Premises except with the prior written consent of Lessor. Any alterations, additions, or modifications once made (with Lessor's consent) may not be remodified or removed without Lessor's consent. Unless otherwise agreed in writing, any additions shall be the property of Lessor upon termination of this Lease. All work performed by the Lessee (with Lessor's consent) shall be done only in accordance with all applicable building and life safety codes. Prior to the commencement of such work, no-lien contracts shall be recorded in the Prothonotary's Office of Washington County, Pennsylvania.

10) DAMAGE BY FIRE OR OTHER CASUALTY. If the Leased Premises becomes damaged by fire or other casualty to such an extent so as to render same unfit for further use by Lessee, Lessor shall undertake to repair the damage within four months of the occurrence of such damage during which said time rent shall abate. Lessor's obligation herein to repair is limited to the amount of insurance proceeds paid. If said repairs are not substantially completed within said four month period, Lessee may terminate this Lease with no further obligations hereunder.

11) EMINENT DOMAIN. In the event of a total taking of the Leased Premises by eminent domain, this Lease shall automatically terminate at such time as the condemning authority assumes possession thereof. In the event of a partial taking so as not to render the Leased Premises unfit for further use by Lessee, rent shall abate in proportion to the amount of the Leased Premises taken. Lessee shall not participate in any award of damages by the

condemning authority in the event of either a partial or a total taking.

12) **INSURANCE AND RISK OF LOSS.** Lessee agrees to procure on or before the date of execution hereof from a good and responsible insurance company satisfactory to Lessor which has a rating of B+ or better by AM Best Company and maintain during the entire term of this Lease (1) comprehensive general liability insurance in the minimum amount of \$2,000,000 for loss from bodily injury or property damage combined which identifies Lessor as an "additional insured", and (2) fire and extended coverage insurance on Lessee's equipment, fixtures, goods, wares, and other property in or on the Leased Premises in an amount within Lessee's discretion but in no event less than the replacement value thereof. Lessee agrees to provide Lessor prior to occupancy a certificate of such insurance certifying that it cannot be terminated without thirty (30) days prior written notice to Lessor.

13) **SUBORDINATION.** This Lease is subordinate to the lien of all mortgages now or at any time hereafter placed upon the Leased Premises, to extensions or renewals thereof, and to all advances now or hereafter made on the security thereof. Lessee agrees to execute appropriate documents to confirm and implement the subordination, if requested.

14) **ENTRY AND INSPECTION.** Lessor retains the right to enter, upon the Leased Premises at reasonable times to inspect, make repairs, or alterations as needed, to enforce this Lease or to show the Leased Premises to prospective purchasers or tenants. Any such entry and inspection shall not unreasonably interfere with Lessee's use of the Leased Premises. Lessee may not change the locks on the premises or install special locks without the prior written consent of Lessor. The Lessor shall at all times be entitled to retain a key to the premises.

15) **REMOVAL.** Prior to any removal by Lessee of Lessee's possessions from the Leased Premises during the term of this Lease, Lessee shall notify the Lessor. Failure to do so shall constitute an act of default under this Lease. If at any time Lessee shall have vacated or ceased to occupy the Leased Premises or shall have removed all or substantially all of Lessee's possessions therefrom without having notified the Lessor, the Lessor may enter the Leased Premises and alter, renovate and/or rehabilitate it without diminution or abatement of rent or the payment of any compensation to Lessee and such action shall have no effect whatsoever upon Lessee's obligation under this Lease. Any property of Lessee remaining in the Leased Premises in any such event shall be deemed abandoned by Lessee and may be retained or disposed of by Lessor in any manner. Abandonment shall be presumed where Lessee moves out all or substantially all of Lessee's equipment, including trade fixtures; (a) without Lessor's consent or (b) where the rent is or becomes delinquent.

16) **ASSIGNMENT AND SUBLETTING.** Lessee may not assign this Lease or sublet any part of the Leased Premises without the prior written consent of Lessor. No such consent shall relieve Lessee of its responsibility under this Lease.

17) **SIGNS.** Lessee may place signs within the interior area of the Leased Premises provided same does not damage or destroy the Leased Premises or any part thereof. Lessee may also erect signs on the exterior of the Leased Premises along with a freestanding illuminated road sign which would be at the expense of the Lessee. Any sign illuminated by Lessee shall be done

so with electricity provided solely and exclusively at the expense of Lessee. Any sign erected on either the interior or the exterior of the Leased Premises shall be done by the Lessee in strict compliance with all applicable laws and ordinances, with Lessee being solely responsible for compliance with such laws or ordinances.

18) VEHICLE PARKING. Lessor shall provide Lessee with vehicle parking spaces. Such parking spaces, and parking shall be permitted by Lessee and invitees and employees of Lessee.

19) QUIET POSSESSION. Beginning on the date of occupancy hereof, Lessor shall place Lessee in quiet possession of the Leased Premises. It shall not be a breach of this warranty if Lessee's use and enjoyment of the Leased Premises is disturbed by acts or omissions of other parties having no contractual relationship with Lessor.

20) COMPLIANCE WITH LAWS. Lessee covenants and agrees to comply with all applicable governmental laws and regulations now or hereafter existing.

21) INDEMNIFICATION. Lessee agrees to indemnify and save harmless Lessor against any and all claims, including mechanics liens, by or on behalf of any person or persons, firm or firms, corporation or corporations, arising from the conduct or management of or from any work or thing whatsoever done or contracted for by Lessee in or about the demised premises, and will further indemnify and save Lessor harmless from and against any lawfully determined liability arising from any breach or default on the part of the Lessee to be performed, pursuant to the terms of this Lease, or arising from any breach or default on the part of Lessee to be performed, pursuant to the terms of this Lease, or arising from any act or negligence of Lessee or any of its agents, contractors, servants, employees or licensees or invitees, or arising from any accident, injury or damage whatsoever caused to any person, firm or corporation occurring during the term of this Lease in or about the demised premises, and from and against all costs, counsel fees, expenses and liabilities incurred in or about any such claim or action or proceeding brought thereon; and in care of any action or proceeding be brought against Lessor by reason of any such claim, Lessee, upon notice from Lessor, covenants to resist or defend, at Lessee's expense, such action or proceeding by counsel reasonably satisfactory to Lessor, Lessee covenants and agrees to pay and to indemnify Lessor against all legal costs and charges, including reasonable counsel fees, lawfully and reasonably incurred in obtaining possession of the demised premises after default of Lessee or upon expiration or earlier termination of the term of this Lease or in enforcing any covenant or agreement of Lessee herein contained.

22) DEFAULT. Each of the following events shall constitute an "Event of Default" or "Default" by Lessee hereunder:

(a) Failure by Lessee to pay the fixed rent, or any part thereof, when due.

(b) Failure by Lessee to comply with any of the terms, conditions, or covenants of this Lease.

- (c) An assignment by Lessee for the benefit of creditors.
- (d) The filing of a petition in bankruptcy by or against Lessee.
- (e) The filing of a bill-in-equity or other proceeding for the appointment of a receiver for Lessee.
- (f) The violation by the Lessee, or by any agents, servants, employees, or business visitors of the Lessee, or any of the rules and regulations of the Lessor contained in the Addendum hereto, which is incorporated herewith by reference, or the violation of such other further reasonable rules and regulations that the Lessor shall promulgate.
- (g) The issuance of an execution against Lessee.
- (h) The removal, attempt to remove, or manifestation of an intent to remove Lessee's goods or property from or out of the demised premises other than in the ordinary or usual course of business by Lessee, without first having paid Lessor all fixed and additional rent provided for herein for the entire term hereof.

23) **DEFAULT - REMEDIES.** Upon default of any provision of this Lease by Lessee, Lessor shall give notice to Lessee of the nature of such default whereupon Lessee shall have 30 days from the receipt thereof to begin to take action to cure such default. If Lessee fails to fully cure such default within said 30 day period, Lessor may (1) terminate this Lease, (2) accelerate all sums due under this Lease, (3) re-enter, remove Lessee's property and sublet the Leased Premises to another tenant, the cost and expense of which shall be Lessee's responsibility, hereby releasing Lessor for damages for such re-entry, and/or removal of property and/or (4) recover all rent, damages, charges, court costs, reasonable attorneys fees, and consequential damages caused by the act(s) of default.

Upon default of any provision of this Lease by Lessor, Lessee shall give notice to Lessor of the nature of such default whereupon Lessor shall have 30 days from the receipt thereof to fully cure such default. If Lessor fails to cure such default within said 30 day period, Lessee may bring an action against Lessor for damages in an amount equal to the difference between the amount of rent due under the terms of the within Lease and the fair rental value of the Leased Premises on account of such default.

24) **NOTICES.** All notices given hereunder to the parties hereto shall be in writing and shall be mailed or delivered at the address set forth on Page 1 of this Lease. Either party may notify the other of a change of address. Lessee hereby waives all notice to quit requirements pursuant to Act No. 20, approved April 6, 1951 entitled "The Landlord and Tenant Act of 1951", as amended.

25) **DAMAGE TO LEASED PREMISES.** Lessee does hereby release and agrees that

the landlord shall not be liable for any damage, compensation, or claim by reason of any damage to the Leased Premises or the personal property, equipment, or fixtures of the Lessee located therein, caused by fire, or any other casualty, including but not limited to any water seepage, sewage-back-up or flooding of any sort, including any interruption in the use of the Leased Premises for any reason whatsoever, or the termination of this Lease by reason of the destruction of or damage to the Leased Premises.

26) RULES AND REGULATIONS. The Lessee shall faithfully observe and comply with the rules and regulations annexed hereto and with such other and further reasonable rules and regulations which Lessor hereafter, from time to time, may make. Lessor shall not be responsible to Lessee for the nonperformance by any other Lessee of the medical facility of any of said rules and regulations or any other covenant. The Lessee agrees that it will, in its sole cost and expense, promptly fulfill and comply with all laws, ordinances, regulation and requirements of the city, county, state, and federal governments and any and all departments hereof having jurisdiction over the building, and of the National Board of Fire Underwriters or any other similar body now or hereafter constituted, affecting the Lessee's occupancy of the demised premises or the business conducted therein.

27) SEVERABILITY. In the event any provision of this Lease is held illegal, void, or unenforceable, same shall have no effect on the remaining portions of this Lease.

28) INTEGRATION. There are no agreements between the parties hereto relating to the Leased Premises other than the within Lease. This Lease is binding on the heirs, administrators, executors, successors or assigns of the parties hereto.

29) INTERPRETATION. This Lease shall be interpreted in accordance with the laws of the Commonwealth of Pennsylvania.

30) TIME OF THE ESSENCE. Time is of the essence of this Lease.

IN WITNESS WHEREOF, the parties hereto have hereunto set their hands and seals the date first above written intending to be legally bound hereby.

ATTEST:

Belle J. Yakulik

LESSOR:

Spartan Medical Facility, L.P.

By: Walt Henry

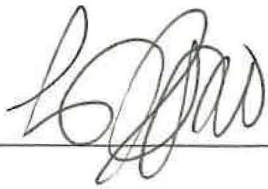
Name: WALT HENRY

Title: Executive Administrator

ATTEST

LESSEE:

John O. Fishell Jr, DMD, MDS, Inc.



By: J.O.F. 7-11-23
Name: JOHN O. FISHELL JR.
Title: PRESIDENT